

24PSCV01984 24PSCV01984

County: los-angeles

Division: Civil Law and Motion

Department: H

Hearing date: 2026-07-14

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=EA%20%2CH%2C07%2F14%2F2026

Source SHA-256: 0d9401214c4e30024dd1fd7c57237a97a04f8d477005aa18b6ec17a4b0cc0298

Case Number: 24PSCV01984 Hearing Date: July 14, 2026 Dept: H

Slope Tech, Inc. v. Topix Group

US Corporation, a Wyoming Corporation, et al., Case No. 24PSCV01984

ORDER ON

APPLICATION FOR DEFAULT JUDGMENT

Plaintiffs Maria Caballero and

David Acevedo's Application for Default Judgment against Topix Group US Corporation, a Wyoming Corporation and Bradley Mantha, is DENIED without prejudice.

Background

Plaintiff

Slope Tech, Inc. ("Plaintiff") alleges as follows:

On or about December 13, 2022 and

December 14, 2022, written agreements were made between Plaintiff and Topix Group US Corporation ("Topix"), wherein Plaintiff agreed to provide services and/or goods to Topix in exchange for Topix's payment. The agreement was guaranteed by Bradley Mantha ("Mantha"). Topix has failed to pay for all services and/or goods provided.

On June

20, 2024, Plaintiff filed a complaint, asserting causes of action against

Topix, Mantha and Does 1-10 for: (1) Open Book Account, (2) Account Stated, (3) Reasonable Value, (4) Agreement, (5) Personal Guarantee, and (6) Quantum Meruit.

On May

21, 2025, Mantha's default was entered. On June 4, 2025, Topix's default was entered.

Discussion

Plaintiff's

Application for Default Judgment is denied without prejudice.

Plaintiffs seek the following in damages:

Damages

\$102,271.51

Punitive Damages

N/A

Interest

\$22,379.99

Attorneys' fees

\$2,912.72

Costs

\$860

TOTAL

\$128,424.22

The Declaration of Nicholas

Helms, a New York resident, identifies and references copies of the agreements.

The declaration was signed on January 14, 2025, and notarized by a State of

Texas Notary. (Declaration of Nicholas Helms, Ex. A-B.) The

actual agreements included in the complaint list amounts of \$42,236.24 and \$51,812.50 for a total of

\$94,048.74, as the amounts actually financed, with \$46,417.64 and 55,853.88 identified as the total amount paid back at the respective 40.15% and 31.63% interest rates for a total of to \$102,271.52.

Declarant represents a breach of the agreement due to a failure to make any payments due as of March 15, 2023. Both agreements required a single payment on March 14 and 15, 2023, respectively.

Plaintiff correctly utilizes the 10% interest rate for the default period from March 15, 2023 to May 22, 2025. (Declaration of Ron Chow.) The costs are also itemized. Section 11 of the agreements includes recovery of attorney fees.

Plaintiff establishes non-payment, but the application lacks support for full recovery of \$102,271.52, which includes both the lent amount and full financing charges. The recovery of the full contract price exceeds the actual damages suffered by the non-payment, and therefore constitutes an improper windfall recovery without sufficient legal or factual support for such damages. Plaintiff is only entitled to the actual amounts financed with a 10% interest recovery from the date of default on the notes.

The application is therefore denied without prejudice. Plaintiff is directed to submit a judgment for the amount of \$94,048.74 in principal, with 10% interest on this amount from the date of breach.